

him. 4. They ought to have committed the plaintiff immediately, although no time be limited in the Act. 5. Their proceedings ought not to be by parol inasmuch as their authority is by patent and Act of Parliament, and especially it being to fine and imprison. 6. The Act giving a power to imprison until he be delivered by the president and censors, or their successors, shall be taken strictly, or otherwise the liberty of the subject is at their pleasure.

\*1. None can be punished for practising physic within London, but by forfeiture of 5l. a month, which is to be recovered by the law. 2. If any practise physic there for less time than a month, he shall forfeit nothing. 3. If any person prohibited by the statute offend in *non bene exequendo*, &c. they may punish him according to the statute within the month. 4. Those whom they commit to prison by the statute ought to be committed immediately. 5. The fines which they assess according to the statute belong to the King. 6. They cannot impose fine or imprisonment without making a record thereof. 7. The cause for which they impose a fine and imprisonment ought to be certain; for it is traversable.\* S. C. 1 Brown. 255.

Carth. 192. 6 Mod. 125. Skinner 568. 4 Inst. 251. 2 Brown. 255, 256, &c. 1 Ld. Raym. 454. Com. Dig. Phy. A. Vin. Ab. Phys. A. 4 Burr. 2188.

[114 a] Thomas Bonham, doctor in philosophy and physic, brought an action of false imprisonment against Henry Atkins, George Turner, Thomas Moundford, and John Argent, doctors in physic, and John Taylor, and William Bowden, yeomen; for that the defendants, the 10th November anno 4 Jacobi, did imprison him, and detain him in prison seven days. The defendants pleaded the letters patent of King H. 8. bearing date 23 September anno 10 of his reign, by which he recites, *Quod cum Regii officii sui munus arbitrabatur ditionis sue hominum felicitati omni ratione consulere, id autem vel imprimis fore si improborum conatibus tempestive occurreret, &c.* And by the same letters patent, the King granted to John Chambre, Thomas Linacre, Ferdinando de Victoria, John Halswel, John Frances, and Robert Yaxley, *quod ipsi omnesque homines ejusdem facultatis de et in civitat' London sint in re et nomine unum corpus et communitas perpetua, per nomen præsidentis et collegii, sive communitatis facultatis medicinæ London, &c.* And that they might make meetings and ordinances, &c. But the case at Bar doth principally consist on two clauses in the charter. The first, *concessimus etiam eisdem præsidenti et collegio seu communitati et successoribus suis, quod nemo in dicta civitate, aut per septem milliaria in circuitu ejusdem, exerceat dictam facultatem medicinæ, nisi ad hoc per dict' præsident' et communit' seu successores suos, qui tempore fuerint, admissus sit per ejusdem præsidentis et collegii literas sigillo suo communi sigillat' sub pœna centum [114 b] solidorum pro quolibet mense quo non admissus eandem facultatem exercuerit, dimid' inde dom' Regi et heredibus suis, et dimidium dict' præsidenti et collegio applicand', &c.* The second clause is, which immediately follows in these words, *præterea voluit et concessit pro se et successoribus suis, quantum in se fuit, quod per præsident' collegium prædict' communitat' pro tempore exist' et eorum successores imperpetuum, quatuor, singulis annis per ipsos eligerent qui haberent supervisum et scrutinium, correctionem et gubernationem omnium et singulorum dict' civitatis medicorum, utentium facultat' medicinæ in eadem civitate, ac aliorum medicorum forinsecorum quorumcunque facultatem illam medicinæ, aliquo modo frequentantium et utentium infra eandem civitatem et suburbia ejusdem, sive infra septem milliarii in circuitu ejusdem civitatis, ac punitionem eorundem pro delictis suis in non bene exequend' faciend' et uten' illa: necnon supervisum et scrutinium omnium medicinarum, et earum receptionem per dictos Medicos seu aliquem eorum hujusmodi ligeis dicti nuper Regis pro eorum infirmitatibus curand' et sanand' dand' imponend', et utend' quoties et quando opus fuerit, pro commodo et utilitat' eorundem ligeorum dicti nuper Regis: ita quod punitione eorundem medicorum utentium dicta facultate medicinæ sic in præmiss' delinquentium per fines, amerciamenta et imprisonment' corporum suorum, et per alias vias rationabiles et congruas exequeretur, prout by the said charter plenius liquet. Et quod virtute præd' literarum patentium præd' J. Chambre, Tho. Linacre, &c. et omnes homines ejusdem facultatis in civit' præd' fuer' unum corpus et communitas perpet' sive collegium perpetuum. And*